

# Conditional Waiver and Release on Progress Payment

Form 1 of 4 · Takes effect only when the payment described below has cleared

## Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216  
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

| CLAIMANT (YOU)                                                                           | CUSTOMER (WHO HIRED YOU)                                              | OWNER OF THE PROPERTY                                                   | PROJECT / PROPERTY                                                                          |
|------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>Summit Mechanical Contractors</b><br>4120 Industrial Way, Suite 200, Denver, CO 80216 | <b>Brightline Builders, Inc.</b><br>1550 Wewatta St, Denver, CO 80202 | <b>Harbor Point Development LLC</b><br>900 Wynkoop St, Denver, CO 80202 | <b>Harbor Point Medical Office – Building B</b><br>2200 Harbor Point Blvd, Denver, CO 80216 |

PAYMENT

the progress payment this waiver covers

| THROUGH DATE    | PAYMENT AMOUNT | PAID BY (MAKER OF CHECK)  | REFERENCE (APPLICATION / CHECK NO.) |
|-----------------|----------------|---------------------------|-------------------------------------|
| August 31, 2026 | \$122,557.50   | Brightline Builders, Inc. | Application for payment no. 3       |

WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above, to the following extent.

This release covers a progress payment for labor, services, equipment or materials furnished to the customer through the through date stated above only, and does not cover any retention, any pending change orders or extras, any disputed items, or any labor, services, equipment or materials furnished after that date, as listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS – THIS DOCUMENT DOES NOT AFFECT

rights the claimant keeps after signing

| RETENTION WITHHELD | PENDING CHANGE ORDERS / EXTRAS | DISPUTED CLAIMS | FURNISHED AFTER THE THROUGH DATE |
|--------------------|--------------------------------|-----------------|----------------------------------|
| \$28,680.50        | \$5,784.50                     | \$0.00          | Not covered                      |

DESCRIPTION OF EXCEPTIONS – change order numbers, amounts and status; disputed items

CO-003 (Add 2" condensate drain from AHU-3 per M-402 Rev. 2 (RFI-014), \$5,784.50) submitted August 28, 2026 and not yet approved as of this waiver.  
Retention of \$28,680.50 withheld through application no. 3 remains due.

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

|           |                                 |                               |            |
|-----------|---------------------------------|-------------------------------|------------|
|           | Dana Whitfield, Project Manager | Summit Mechanical Contractors | 09/03/2026 |
| SIGNATURE | PRINTED NAME AND TITLE          | COMPANY                       | DATE       |

NOTARY ACKNOWLEDGMENT – OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of \_\_\_\_\_ County of \_\_\_\_\_

Subscribed and sworn to (or affirmed) before me on this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC – SIGNATURE \_\_\_\_\_ PRINTED NAME \_\_\_\_\_ COMMISSION EXPIRES \_\_\_\_\_

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

# Unconditional Waiver and Release on Progress Payment

Form 2 of 4 · Takes effect when signed — sign only after the payment has cleared your account

## Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216  
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

| CLAIMANT (YOU)                                                                           | CUSTOMER (WHO HIRED YOU)                                              | OWNER OF THE PROPERTY                                                   | PROJECT / PROPERTY                                                                          |
|------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>Summit Mechanical Contractors</b><br>4120 Industrial Way, Suite 200, Denver, CO 80216 | <b>Brightline Builders, Inc.</b><br>1550 Wewatta St, Denver, CO 80202 | <b>Harbor Point Development LLC</b><br>900 Wynkoop St, Denver, CO 80202 | <b>Harbor Point Medical Office — Building B</b><br>2200 Harbor Point Blvd, Denver, CO 80216 |

PAYMENT

the progress payment this waiver covers

| THROUGH DATE    | PAYMENT AMOUNT | PAID BY (MAKER OF CHECK)  | REFERENCE (APPLICATION / CHECK NO.) |
|-----------------|----------------|---------------------------|-------------------------------------|
| August 31, 2026 | \$122,557.50   | Brightline Builders, Inc. | Application for payment no. 3       |

### WAIVER AND RELEASE

The claimant has been paid and has received a progress payment in the payment amount stated above for labor, services, equipment or materials furnished to the customer named above on the job of the owner named above, located at the project stated above, and does hereby release any mechanics lien, stop payment notice or payment bond right the claimant has on the job to the following extent.

This release covers a progress payment for all labor, services, equipment or materials furnished to the customer through the through date stated above only, and does not cover any retention, any pending change orders or extras, any disputed items, or any labor, services, equipment or materials furnished after that date, as listed under exceptions below.

NOTICE TO CLAIMANT: This document waives and releases lien, stop payment notice and payment bond rights unconditionally and states that you have been paid for giving up those rights. It is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional waiver and release form.

EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT

rights the claimant keeps after signing

| RETENTION WITHHELD | PENDING CHANGE ORDERS / EXTRAS | DISPUTED CLAIMS | FURNISHED AFTER THE THROUGH DATE |
|--------------------|--------------------------------|-----------------|----------------------------------|
| \$28,680.50        | \$5,784.50                     | \$0.00          | Not covered                      |

DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

CO-003 (Add 2" condensate drain from AHU-3 per M-402 Rev. 2 (RFI-014), \$5,784.50) submitted August 28, 2026 and not yet approved as of this waiver. Retention of \$28,680.50 withheld through application no. 3 remains due.

CLAIMANT'S SIGNATURE

sign only after the payment has cleared your account

|           |                                 |                               |            |
|-----------|---------------------------------|-------------------------------|------------|
|           | Dana Whitfield, Project Manager | Summit Mechanical Contractors | 10/02/2026 |
| SIGNATURE | PRINTED NAME AND TITLE          | COMPANY                       | DATE       |

NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of \_\_\_\_\_ County of \_\_\_\_\_

Subscribed and sworn to (or affirmed) before me on this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC — SIGNATURE

PRINTED NAME

COMMISSION EXPIRES

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

# Conditional Waiver and Release on Final Payment

Form 3 of 4 · Takes effect only when the final payment described below has cleared

## Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216  
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

| CLAIMANT (YOU)                                                                           | CUSTOMER (WHO HIRED YOU)                                              | OWNER OF THE PROPERTY                                                   | PROJECT / PROPERTY                                                                          |
|------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>Summit Mechanical Contractors</b><br>4120 Industrial Way, Suite 200, Denver, CO 80216 | <b>Brightline Builders, Inc.</b><br>1550 Wewatta St, Denver, CO 80202 | <b>Harbor Point Development LLC</b><br>900 Wynkoop St, Denver, CO 80202 | <b>Harbor Point Medical Office – Building B</b><br>2200 Harbor Point Blvd, Denver, CO 80216 |

PAYMENT

the final payment, retention included

| THROUGH DATE      | PAYMENT AMOUNT | PAID BY (MAKER OF CHECK)  | REFERENCE (APPLICATION / CHECK NO.)                        |
|-------------------|----------------|---------------------------|------------------------------------------------------------|
| November 30, 2026 | \$49,735.45    | Brightline Builders, Inc. | Final application for payment no. 6 – release of retention |

WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above.

This release covers the final payment to the claimant for all labor, services, equipment or materials furnished on the job, including all retention, except for the disputed claims for additional work listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS – THIS DOCUMENT DOES NOT AFFECT

list disputed extras or write none

| DISPUTED CLAIMS FOR ADDITIONAL WORK | OTHER (CONTRACT WARRANTY AND INDEMNITY OBLIGATIONS SURVIVE) |
|-------------------------------------|-------------------------------------------------------------|
| \$0.00                              | None                                                        |

DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

None. All approved change orders (CO-001 through CO-003) have been paid in full.

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

|           |                                 |                               |            |
|-----------|---------------------------------|-------------------------------|------------|
|           | Dana Whitfield, Project Manager | Summit Mechanical Contractors | 12/04/2026 |
| SIGNATURE | PRINTED NAME AND TITLE          | COMPANY                       | DATE       |

NOTARY ACKNOWLEDGMENT – OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of \_\_\_\_\_ County of \_\_\_\_\_

Subscribed and sworn to (or affirmed) before me on this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC – SIGNATURE \_\_\_\_\_ PRINTED NAME \_\_\_\_\_ COMMISSION EXPIRES \_\_\_\_\_

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

# Unconditional Waiver and Release on Final Payment

Form 4 of 4 · Takes effect when signed — sign only after every dollar, retention included, has cleared

## Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216  
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

| PARTIES AND PROJECT                                                                      |                                                                       |                                                                         | the customer is whoever contracted with the claimant                                        |
|------------------------------------------------------------------------------------------|-----------------------------------------------------------------------|-------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| CLAIMANT (YOU)                                                                           | CUSTOMER (WHO HIRED YOU)                                              | OWNER OF THE PROPERTY                                                   | PROJECT / PROPERTY                                                                          |
| <b>Summit Mechanical Contractors</b><br>4120 Industrial Way, Suite 200, Denver, CO 80216 | <b>Brightline Builders, Inc.</b><br>1550 Wewatta St, Denver, CO 80202 | <b>Harbor Point Development LLC</b><br>900 Wynkoop St, Denver, CO 80202 | <b>Harbor Point Medical Office — Building B</b><br>2200 Harbor Point Blvd, Denver, CO 80216 |
| PAYMENT                                                                                  |                                                                       |                                                                         | the final payment, retention included                                                       |
| THROUGH DATE                                                                             | PAYMENT AMOUNT                                                        | PAID BY (MAKER OF CHECK)                                                | REFERENCE (APPLICATION / CHECK NO.)                                                         |
| November 30, 2026                                                                        | \$49,735.45                                                           | Brightline Builders, Inc.                                               | Final application for payment no. 6 — release of retention                                  |

**WAIVER AND RELEASE**

The claimant has been paid in full for all labor, services, equipment or materials furnished to the customer named above on the job of the owner named above, located at the project stated above, including all retention, and does hereby waive and release any right to a mechanics lien, stop payment notice or any right against a payment bond on the job, except for the disputed claims for additional work listed under exceptions below.

The claimant further represents that it has paid, or will pay from the proceeds of this payment, every subcontractor, supplier and laborer who furnished labor, services, equipment or materials to the claimant for this job.

**NOTICE TO CLAIMANT:** This document waives and releases lien, stop payment notice and payment bond rights unconditionally and states that you have been paid for giving up those rights. It is enforceable against you if you sign it, even if you have not been paid. If you have not been paid, use a conditional waiver and release form.

**EXCEPTIONS — THIS DOCUMENT DOES NOT AFFECT** list disputed extras or write none

| DISPUTED CLAIMS FOR ADDITIONAL WORK | OTHER (CONTRACT WARRANTY AND INDEMNITY OBLIGATIONS SURVIVE) |
|-------------------------------------|-------------------------------------------------------------|
| \$0.00                              | None                                                        |

DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

None. All approved change orders (CO-001 through CO-003) have been paid in full.

**CLAIMANT'S SIGNATURE** sign only after the payment has cleared your account

|           |                                 |                               |            |
|-----------|---------------------------------|-------------------------------|------------|
|           | Dana Whitfield, Project Manager | Summit Mechanical Contractors | 01/08/2027 |
| SIGNATURE | PRINTED NAME AND TITLE          | COMPANY                       | DATE       |

**NOTARY ACKNOWLEDGMENT — OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT**

State of \_\_\_\_\_ County of \_\_\_\_\_

Subscribed and sworn to (or affirmed) before me on this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, by the person signing above, personally known to me or identified by satisfactory evidence.

|                           |              |                    |
|---------------------------|--------------|--------------------|
| NOTARY PUBLIC — SIGNATURE | PRINTED NAME | COMMISSION EXPIRES |
|---------------------------|--------------|--------------------|

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.